

IN THE COURT OF APPEAL OF TANZANIA

AT DODOMA

(CORAM: FIKIRINI, J.A., MGEYEKWA, J.A. And MASARA, J.A.)

CIVIL APPEAL NO.720 OF 2025

ELTEL TANZANIA LIMITED APPELLANT

VERSUS

GATI MASERO BUTTER t/a BOTECH

PROJECT MANAGEMENT RESPONDENT

**(Appeal from the Judgment and Decision of the High Court of
Tanzania Dar es Salaam Sub-Registry at Dar es Salaam)**

(Mgonya, J.)

dated the 6th day of June, 2023

in

Civil Case No. 82 of 2015

JUDGMENT OF THE COURT

11th & 31st August, 2026

MASARA, J.A.:

The appellant, Eltel Tanzania Limited, aggrieved by the judgment and decree of the High Court of Tanzania at Dar es Salaam in Civil Case No. 82 of 2015, delivered in favour of the respondent, has preferred the present appeal against the whole of the said decision.

The dispute between the parties arose from a subcontract agreement executed on 01/06/2013, between the respondent and the appellant, in relation to a power utility project undertaken pursuant to

Contract No. PA/001/11/HQ/W/061. The appellant, having secured the project, engaged the respondent as a subcontractor to undertake excavation and installation of underground electric cables along designated routes in Dar es Salaam. The appellant was the main contractor under the contractual arrangement.

The subcontract imposed reciprocal obligations upon the parties. Among other things, the appellant was required to obtain necessary permits from the relevant authorities, including the Municipal Council and TANROADS, and to provide the equipment and machinery required for execution of the works. The respondent, on its part, was required to secure the requisite performance and security bonds, particularly as a condition for release of the second instalment.

The respondent's case was that it complied with its contractual obligations by securing the requisite bonds. It nevertheless alleged that the appellant delayed in obtaining the necessary permits and in supplying the equipment and materials required for execution of the works. According to the respondent, the delays affected the progress of the project.

The respondent subsequently issued a demand notice dated 29/01/2015, calling upon the appellant to comply with the agreed

contractual terms. The respondent alleged that, instead of remedying the complained-of defaults, the appellant issued a notice terminating the subcontract.

The respondent further alleged that the contracted works were subsequently assigned to another contractor without its consent. It therefore treated the conduct complained of as a breach of the subcontract and instituted the suit, the decision of which is the subject of this appeal.

In the suit, the respondent sought, among other reliefs, a declaration that the subcontract had been breached. Consequently, it sought damages for loss of income, reimbursement of expenses incurred in securing the requisite bonds, general damages, interest and costs.

The appellant resisted the suit. Its position, as it appears from the pleadings and evidence, was that the subcontract was a works contract under which payment was to be made for work actually performed and upon presentation of the relevant certificates and invoices. The appellant further maintained that the respondent was negligent and had abandoned the works before completion. It also contended that the respondent did not submit any certificate or invoice evidencing completed works for which payment remained outstanding.

In addition to contesting the main suit, the appellant lodged a counterclaim to the tune of EUR 161,039.49, being the amount given to the respondent as advance payment, which the respondent allegedly failed to account for as lawfully spent under the contract. It further claimed USD 70,000.00, being the value of equipment which the respondent received but failed to handover following termination of the subcontract. The appellant also sought general damages, interest and costs.

The matter proceeded to trial. Upon considering the evidence, the High Court found that the appellant was in breach of the subcontract. The High Court further found that the respondent had failed to strictly prove the special damages claimed. As regards the appellant's counterclaim, the learned Judge found that the same had not been sufficiently established; it was consequently dismissed.

The learned Judge, nevertheless, awarded the respondent general damages amounting to EUR 150,000.00, for mental distress and loss of business expectation, together with interest and costs.

Dissatisfied with the decision, the appellant lodged the present appeal on three grounds. In substance, the appellant contends that the High Court:

- a) Erred in law by delivering its judgment in the absence of the parties and without notice;*
- b) Erred in law and fact in its evaluation of the evidence and consequently wrongly found that the appellant had breached the subcontract, notwithstanding the nature of the contract as a works contract, the alleged admission by the respondent of negligence and abandonment of the works, and the absence of certificates or invoices for completed works allegedly unpaid for; and*
- c) Erred in law and fact in evaluating the evidence relating to the counterclaim and dismissing it despite the alleged admission by the respondent that it had received the equipment forming the subject of the counterclaim.*

Upon being served with the memorandum of appeal, the respondent lodged a cross-appeal indicating dissatisfaction with certain aspects of the High Court's decision. In substance, the respondent contends that the learned Judge, having found that the appellant was in breach of the subcontract, was obliged to award specific damages even if not satisfactorily proved, on the basis of the principle of *ubi jus ibi remedium*; meaning that where there is a right, there is a remedy.

The respondent further contends that the High Court erred in failing to award damages for the three-month period during which performance of the contract was suspended, which fact was allegedly not disputed by the appellant. It is also contended that, having regard to the pleadings

and evidence concerning the performance and security bonds, the learned Judge erred in failing to order reimbursement of TZS 30,000,000/= paid towards the performance bond and TZS 15,000,000/= paid towards the security bond.

It is against that background that both the appeal and the cross-appeal arise for determination before this Court.

At the hearing, the appellant was represented by Mr. Joseph Ndazi, learned advocate, whereas the respondent was represented by Messrs Robert Rutaiwa and Philemon Mutakyamirwa, learned advocates.

When the appeal came up for hearing, the Court, *suo motu*, asked advocates for the parties to address the Court on the competence or otherwise of the appeal; specifically, pertaining to observed defect in the Certificate of Delay dated 4th March, 2025, among others.

Mr. Ndazi submitted that the Certificate of Delay on record is proper because the period commencing on 26/06/2023 to 24/05/2024 is covered by the order of the High Court, which extended time for lodging the Notice of Appeal, in Misc. Civil Application No. 411 of 2023 dated 9/5/2024. He argued that the appellant had initially written to the Deputy Registrar on 26/06/2023 seeking the requisite documents and, after discovering that the time for lodging the Notice of Appeal had expired, successfully applied

for an extension of time. The High Court subsequently granted fourteen days within which to lodge the Notice of Appeal on 09/05/2024.

According to Mr. Ndazi, the extension order effectively covered the period from 26/06/2023, when the first request for documents was made, to fourteen days after the ruling extending time to the appellant was delivered and, therefore, there was no need for the Deputy Registrar to exclude that period in the Certificate of Delay. Counsel further submitted that the subsequent letter of 24/05/2024 was made after the extension had been granted and that the certificate of delay correctly excluded the period from that date to 04/03/2025.

Mr. Mutakyamirwa had a different view. He argued that the letter of 26/06/2023 was made within the period prescribed by Rule 90(1) of the Court of Appeal Rules (the Rules). In his view, the appellant ought thereafter to have proceeded within the prescribed time to file a notice of appeal and subsequently the appeal itself. Having instead sought and obtained an extension of time, counsel contended, the Certificate of Delay ought to have excluded the period from 26/06/2023 to 24/05/2024. Since it did not do so, the appeal was time-barred, he maintained.

In rejoinder, Mr. Ndazi maintained that Rule 90(1) of the Rules requires that a letter applying for documents, which later forms a basis

for issuance of a certificate of delay, be made within thirty days from the date of the decision. Further, that where the date of the decision is unknown, the Rule would not apply. He accordingly maintained that the appeal was properly before the Court.

Although the learned advocates were allowed to submit and or highlight on their written submissions on the substance of the appeal and the cross appeal, we do not deem it necessary to reproduce such submissions for obvious reasons.

We have carefully considered the submissions by Counsel for both parties on the issue raised, and have also scrutinized the record before us. The main issue for determination is whether the Certificate of Delay on record was properly relied on to institute this appeal.

The record is patently clear that the impugned judgment was delivered on 06/06/2023, of course in the absence of the parties, which we abhor. Under Rule 84(2) of the Rules, a person intending to challenge the decision of the High Court is required to lodge a Notice of Appeal within thirty days from the date of the decision. Thereafter, under Rule 90(1) thereof, the appeal is required to be instituted within sixty days from the date on which the Notice of Appeal was lodged.

The proviso to Rule 90(1) of the Rules, however, permits exclusion of the period certified by the Registrar as having been required for the preparation and supply of the proceedings, decision and decree or order where an application for a copy of the same has been made within thirty days of the date of the decision intended to be appealed against. Rule 90(1) and the proviso thereto is therefore material to the determination of this appeal. It provides:

"Subject to the provisions of rule 128, an appeal shall be instituted by lodging in the appropriate registry, within sixty days of the date when the notice of appeal was lodged with –

- a) a memorandum of appeal in quintuplicate;*
- b) the record of appeal in quintuplicate;*
- c) security for the costs of the appeal,*

*save that where **an application for a copy of the proceedings in the High Court has been made within thirty days of the date of the decision against which it is desired to appeal**, there shall, in computing the time within which the appeal is to be instituted be excluded such time as may be certified by the Registrar of the High Court as having been required for the preparation and delivery of that copy to the appellant."*(Emphasis added)

Rule 90(3) of the Rules further requires the appellant to serve the letter requesting the proceedings upon the respondent, where it is desired that the proviso above stated is to be invoked. The record of appeal before us establishes that, on 26/06/2023, the appellant's Counsel wrote to the Deputy Registrar requesting certified copies of the judgment and decree. The letter was served upon and endorsed by Counsel for the respondent on 07/07/2023. Since the judgment was delivered on 06/06/2023, the request was made within thirty days of the decision. Thus, contrary to any suggestion that the appellant never made a timely request, the record clearly demonstrates that it did.

The subsequent events, however, are critical. The appellant, for reasons that are not apparent, did not lodge a notice of appeal within the prescribed period and consequently sought an extension of time at the High Court to do so. On 09/05/2024, the High Court granted the appellant fourteen days within which to lodge the Notice of Appeal. The Notice of Appeal was accordingly lodged on 23/05/2024, within the period granted by the High Court.

The following day, on 24/05/2024, the appellant made a fresh request to the Deputy Registrar for certified copies of the proceedings and exhibits. That request was served upon the respondent on 26/05/2024. The Deputy Registrar thereafter notified the appellant that the documents

were ready for collection on 04/03/2025. It is this second request, rather than the request of 26/06/2023, that the Certificate of Delay at page 513 of the record is founded. The Certificate consequently excludes the period from 24/05/2024 to 04/03/2025.

In our considered view, the Certificate of Delay herein cannot be sustained. The proviso to Rule 90(1) of the Rules requires that an application for a copy of the proceedings be made within thirty days from the date of the decision intended to be appealed against. In our view, time for appeal purposes started reckoning after the impugned decision was delivered; that is, 6th June, 2023. The second request dated 24/05/2024 was made long after the expiry of that period. It therefore did not qualify as a request upon which time could be excluded under the proviso.

We are unable to accept Mr. Ndazi's contention that the order of the High Court extending time to lodge the Notice of Appeal automatically covered or excluded the period commencing on 26/06/2023. There is nothing on record to suggest that the High Court extended the period prescribed by the proviso to Rule 90(1) of the Rules for making an application for proceedings, or to indicate that the High Court directed the Deputy Registrar to exclude any particular period in computing the time for instituting the appeal.

The extension of time to lodge the Notice of Appeal and the exclusion of time under the proviso to Rule 90(1) of the Rules are separate and distinct matters. The former concerns the appellant's failure to lodge the Notice of Appeal within the prescribed period, whereas the latter concerns the period that may be excluded in computing the sixty days within which the substantive appeal must be instituted. An order granting an extension of time for the former cannot, without an express direction to that effect, be construed as granting the latter. Further, this time can only be excluded by the Registrar in a Certificate of Delay.

We agree with Mr Mutakyamirwa's submission that the Certificate of Delay dated 24/05/2024 ought to have excluded the entire period from 26/06/2023, when the Appellant wrote the letter to the Registrar requesting for certified documents, to 24/05/2024 when the appellant wrote another letter craving for the said documents, including those in relation to Misc. Civil Application No. 411 of 2023. Then from 24/05/2024 to 04/03/2025 when the said documents were ready for collection. We should hasten to add, however, that the proviso to Rule 90(1) of the Rules does not provide for an automatic exclusion of every period commencing from the date of a timely request. What is excluded is such time as is certified by the Registrar as having been required for the preparation and delivery of the copy of the proceedings.

The material question is therefore not whether the appellant once made a timely request, but whether the Certificate of Delay relied upon by the appellant properly certifies the period that is excludable under the proviso to Rule 90(1) of the Rules. In the present appeal, it does not. The Certificate specifically relies upon the request of 24/05/2024, which was made outside the thirty days prescribed by the Rules. Counsel for the appellant had a duty to confirm the validity of the Certificate of Delay and seek amendments therein from the Deputy Registrar.

The appellant's rejoinder submissions concerning the date of the decision also cannot assist its case. The record clearly establishes that the judgment was delivered on 06/06/2023, albeit in the absence of the parties. Having obtained the information that the impugned judgment had been read, the appellant cannot be heard to use the error already manifested, but discovered within time, to exonerate itself from the mandatory requirements of the Rules. At any rate, failure to be informed of the date of judgment was remedied when the extension of time to lodge the appeal was given to the appellant by the High Court. In our view, given the circumstances, there is consequently no uncertainty as to the date from which the thirty days period under the proviso to Rule 90(1) of the Rules was to be reckoned. The contention that the Rule would not

apply where the date of the decision was unknown therefore does not arise in the circumstances of this appeal.

The legal consequence of relying upon a defective certificate of delay is well settled. In **Njake Enterprises Ltd vs Blue Rock Ltd & Another** (Civil Appeal No. 69 of 20170) [2018] TZCA 304, the Court held that:

"Having found that there was no valid certificate of delay, the appellant cannot benefit from the exclusion of time in which it was supposed to file its appeal."

Similarly, in **Venance Mwakibinga vs Chief Executive Officer, Tanzania Forest Services Agency & Another** (Civil Appeal No. 214 of 2017) [2021] TZCA 356, the Court stated:

"It must be emphasized that an incurably defective certificate of delay which portrays erroneous facts on what really transpired in the course of applying and obtaining the certified copy of proceedings of the High Court cannot be relied upon to support an appeal which has been preferred after expiry of the prescribed period of limitation."

See also: **Equity Bank Tanzania Limited & Another vs TSN Oil (Tanzania) Limited & Others** (Civil Appeal No. 1413 of 2024) [2026] TZCA 20.

The principles in those authorities apply squarely to the present appeal. The Certificate of Delay at page 513 of the record of appeal purports to exclude the period founded upon the request of 24/05/2024. That request was made outside the thirty days prescribed by the proviso to Rule 90(1) of the Rules. The Certificate of Delay was therefore incapable of providing a lawful basis for excluding the period so certified.

Once the period purportedly excluded by the defective Certificate of Delay is brought back into the computation for appeal purposes, the Memorandum of Appeal filed on 23/04/2025 was lodged outside the sixty days prescribed by Rule 90(1) of the Rules. The appeal was therefore instituted out of time.

From the foregoing, we hold that the Certificate of Delay relied upon by the appellant to institute the appeal is invalid for failure to cover the period which would have rendered the appeal to be within time. The appeal, having been instituted outside the prescribed period, is therefore incompetent. Having so found, we deem it unnecessary to traverse other issues, including the merits of the appeal and the cross appeal.

Accordingly, we strike out the appeal for being supported by an incurably defective Certificate of Delay. As the invalidity of the Certificate of Delay was raised by the Court *suo motu*, we desist from making any order as to costs.

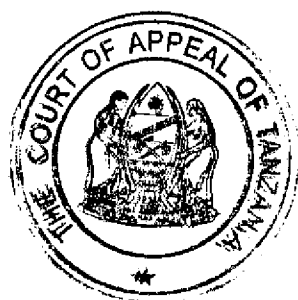
DATED at DODOMA this 28th day of August, 2026.

P. S. FIKIRINI
JUSTICE OF APPEAL

A. Z. MGEYEKWA
JUSTICE OF APPEAL

Y. B. MASARA
JUSTICE OF APPEAL

Judgment delivered virtually this 31st day of August, 2026 in the presence of Ms. Anna Meela learned counsel for the appellant, Mr. Philemon Mutakyamirwa learned Counsel for the respondent and Ms. Tabitha Daniel, Court Clerk; is hereby certified as true copy of the original.




A. L. KALEGEYA
DEPUTY REGISTRAR
COURT OF APPEAL